

BEFORE THE STATE BOARD OF REGISTERED PSYCHOTHERAPISTS

STATE OF COLORADO

Case No. 2016-4171

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE
REGISTRATION TO PRACTICE AS A REGISTERED PSYCHOTHERAPIST IN THE
STATE OF COLORADO OF KELLY KING, REGISTRATION NO. RP (Pending),

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Registered
Psychotherapists ("Board") and Kelly King ("Applicant") as follows:

1. On or about July 17, 2016, Applicant applied for registration in the database to practice as a registered psychotherapist ("RP") in the State of Colorado ("Application").
2. The Board has jurisdiction over Applicant, the Application, and the subject matter of this Stipulation and Final Agency Order ("Order").
3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of the Application without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2016-4171. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Applicant, as of the effective date of this Order.
4. Applicant admits the following:
 - a. On or about July 17, 2016, Applicant applied for registration as a RP in the State of Colorado, and her request to be registered in the database is currently pending.
 - b. On her Application, Applicant answered "yes" to the question which states: "Have you ever received a deferred judgment or been convicted of or pled nolo contendere to a violation of any federal, state, or local law relating to the possession, manufacture, distribution, or dispensing of a controlled substance, or relating to drug abuse, including alcohol (DUI/DWI/DWAI/OWI)?"

c. Applicant reports that on or around December 2009, Applicant pled guilty to DUI in Lafayette, Indiana. She was sentenced to one (1) year of supervised probation.

d. Applicant reports that on or around November 2013, Applicant pled guilty to Operating While Intoxicated-Prior, a class D Felony, in case no. 79D06-1312-FD-00268, in Lafayette, Indiana. She was sentenced to three (3) months of house arrest and two (2) years of supervised probation. Applicant completed the terms of probation on March 8, 2016, and the conviction was modified to a misdemeanor charge.

e. Applicant has admitted to multiple convictions relating to driving under the influence.

f. On or around October 3, 2016, Applicant submitted to an evaluation in Colorado, and the evaluator concluded that Applicant is not safe to practice as a RP with reasonable skill and safety to clients without treatment and/or monitoring.

5. By virtue of the facts admitted in paragraph 4 above, Applicant admits and the Board finds that the above conduct is a violation of §12-43-222(1)(e), C.R.S.

6. By virtue of the admissions contained in paragraph 4, Applicant specifically agrees to accept a registration subject to the terms and conditions outlined below. Applicant further agrees that the Board is authorized by §§12-43-212 and 12-43-224(3)(c), C.R.S., to grant Applicant a registration. Applicant consents to the following limitations to her registration within the meaning of §24-4-104(11), C.R.S. Applicant acknowledges that by accepting this registration in lieu of a formal hearing, Applicant waives all remedies outlined in §§12-43-212 and 24-4-104(9), C.R.S.

PROBATION

7. Applicant's registration shall be placed on probation for a minimum period of five (5) years. Credit toward satisfying the period of probation shall be given only during such periods of time that Applicant is in total compliance with all provisions of this Order. The prescribed period of probation shall not run during any period of time when:

a. Applicant is not practicing as a RP or engaged in the practice of psychotherapy in the State of Colorado;

b. Applicant is not actively participating in a Board-approved peer assistance services program as set forth below in paragraphs 8 and 9 of this Order; and

c. Applicant is not otherwise in full compliance with the terms of this Order.

PEER ASSISTANCE SERVICES ("PAS")

8. As a term of this Order and Applicant's probationary status, Applicant shall enter into and successfully complete a contract with PAS for a minimum period of five (5) years, or until successful completion of the probationary terms and conditions ordered herein, whichever occurs later.

9. Applicant shall enter into a contract with PAS within fourteen (14) days from the effective date of this Order. Applicant agrees to cease the practice of psychotherapy after fourteen (14) days until such time as Applicant enters into a contract with PAS.

a. Urine/Blood Screens. If required as a term of her contract with PAS, Applicant shall submit to full panel urine or blood tests during participation in PAS, as ordered by the Board, Applicant's employer, or Applicant's treatment program monitor, at a frequency determined by Applicant's treatment program contract. All screens or tests shall be administered and monitored by approved program personnel. An overly dilute or missed urine screen or blood test shall be presumed positive for prohibited substances. Use or ingestion of poppy seeds or hemp oil shall not excuse a positive urine screen or blood test. Applicant must submit satisfactory verified test results for all random urine screening or blood testing conducted as part of Applicant's treatment program with Applicant's application for discharge of the probation period.

b. Other Requirements. Applicant shall comply fully and in a timely manner with all requirements, recommendations, restrictions, and directions of the treatment program, as specified in the PAS contract signed by Applicant.

c. Releases. Applicant hereby waives any right or claim of confidentiality to any information, test results, or other data pertaining to Applicant's treatment progress, or lack thereof, with PAS, and will execute a release authorizing PAS to release any and all information pertaining to Applicant's case to the Board upon its request. Applicant shall keep all releases current and in effect.

d. Completion of Program. If Applicant satisfactorily completes the treatment program, verification to the Board by PAS of the completion of treatment shall be deemed sufficient, and the requirements set out herein shall be deemed satisfied, unless other information is reasonably required by the Board to verify Applicant's completion of treatment. It is Applicant's responsibility to ensure that PAS submits verification to the Board of completion of treatment.

e. Withdrawal from Program. Applicant must immediately notify the Board in writing if Applicant withdraws from, is removed from, is terminated from, or otherwise fails to participate fully and satisfactorily in Applicant's treatment program.

TERMS AND CONDITIONS

10. Applicant will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

11. Applicant shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

12. All expenses incurred or associated with any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Board.

13. In the event Applicant relocates at any time during the probationary period, Applicant shall notify the Board of the change of address within 30 days of the effective date of such change.

14. Applicant is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

15. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

16. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

17. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

18. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

19. This Order constitutes the entire agreement between Applicant and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

20. This Order shall become effective upon (a) mailing by first-class mail to Applicant at Applicant's address of record with the Board, or (b) service by electronic means on Applicant at Applicant's electronic address of record with the Board. Applicant hereby consents to service by electronic means if Applicant has an electronic address on file with the Board.

21. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

APPLICANT



KELLY KING
RP (Pending)

AGREED TO AND ORDERED BY:

BOARD OF REGISTERED
PSYCHOTHERAPISTS



DARCIE MAGNUSON
Program Director

Effective this 30th day of
January, 2017.